



CHAPTER 105.

An Act to provide for the modification of the law relating to the administration of justice in Northern Ireland as respects the period of the present emergency and for purposes connected therewith. [21st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Lord Chief Justice of Northern Ireland (in this Act referred to as “the Lord Chief Justice”) may by order direct, as respects the Court of Appeal, the High Court or any Division or judge of the High Court, that the Court, Division or judge shall sit at such place or places and on such dates or for such periods as may be specified in or appointed under the order.

Power to
vary sittings
of the
Supreme
Court.

(2) Any such order may provide—

- (a) for the removal of any offices of or attached to or connected with the Court, Division or judge to which the order relates to such place or places as may be specified in the order;
- (b) for the distribution of the business of any such office among local offices established by or under the order; or
- (c) for the transaction of any part of the business of any such office at a branch office established by or under the order.

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(3) The Lord Chief Justice may by order suspend the sittings of the High Court or Court of Appeal, and for that purpose the power of regulating the vacations to be observed by the High Court and Court of Appeal and in the offices of the said Courts respectively shall be exercised by the Lord Chief Justice by order instead of being exercised in the manner provided by section thirty of the Supreme Court of Judicature Act (Ireland), 1877.

40 & 41 Vict.
c. 57.

The provisions of the said section thirty relating to the effect of an Order in Council made thereunder, and to the making of rules for carrying it into effect, shall apply to any order of the Lord Chief Justice made in pursuance of this subsection as they apply to an Order in Council made in pursuance of the said section.

(4) The power of making rules of court under section sixty-one of the said Act, and of altering and annulling rules made under that section shall be exercised by the Lord Chief Justice by order instead of being exercised in the manner provided by the said section.

Exercise of
powers as
respects
circuits and
assizes.

2.—(1) The Governor of Northern Ireland may by order provide—

(a) for the grant on behalf of His Majesty of commissions of assize and other commissions under section thirty-two of the Supreme Court of Judicature Act (Ireland), 1877; and

(b) for the appointment on behalf of His Majesty of Commissioners of Assize under that section;

by such persons and in such form and manner as may be specified in the order.

(2) The powers exercisable by the Governor of Northern Ireland by Order in Council under section sixty-two of the said Act (which relates to the regulation of circuits) shall be exercisable by the Lord Chief Justice by order.

Power to
vary
sittings of
the Court of
Criminal
Appeal.

3. The Lord Chief Justice may by order direct that the Court of Criminal Appeal shall sit at such place or places and on such dates or for such periods as may be specified in or appointed under the order.

4.—(1) The Governor of Northern Ireland may by order, as respects any county court, court of quarter sessions or court of summary jurisdiction—

Provisions
as to county
courts and
courts of
quarter
sessions
and sum-
mary juris-
diction.

- (a) suspend the sittings of the court for such period as may be specified in or appointed under the order;
- (b) direct that the court shall sit at such place or places, and on such dates or for such periods, and at such times, as may be specified in or appointed under the order; and
- (c) direct that the whole or any part of the jurisdiction of the court shall be transferred to any other county court or courts, or court or courts of quarter sessions or of summary jurisdiction, as the case may be.

(2) Rules and orders made by the Lord Chief Justice for regulating the practice of the county courts (including recorders' courts) under section seventy-nine of the County Officers and Courts (Ireland) Act, 1877, shall not be subject to the concurrence of any persons.

40 & 41 Vict.
c. 56.

5.—(1) Any order made under the foregoing provisions of this Act may be varied, supplemented or revoked by a subsequent order made in like manner by the Governor of Northern Ireland or the Lord Chief Justice, as the case may be.

General
provisions
as to orders
and powers.

(2) Any order made under the foregoing provisions of this Act may contain such provisions as appear to the Governor of Northern Ireland or the Lord Chief Justice, as the case may be, to be necessary or expedient for giving effect to the order or any previous order so made, and may suspend or modify, and shall have effect notwithstanding, any provision of any enactment, Order in Council, order, regulations or rules.

(3) Any power which is exercisable by the Lord Chief Justice under or in accordance with the foregoing provisions of this Act may, if the Lord Chief Justice is unable to act or his office is vacant, be exercised by the senior Lord Justice of Appeal in Northern Ireland for the time being.

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Number of
jurors.

6.—(1) Notwithstanding anything in any enactment, for the purpose of any trial with a jury or inquiry by a jury in any proceedings, whether civil or criminal, it shall not be necessary for the jury to consist of more than seven persons :

Provided that the preceding provisions of this subsection shall not apply in relation to the trial of a person on any charge, if the court or a judge thinks fit, by reason of the gravity of the matters in issue, to direct that those provisions shall not apply, and shall not in any case apply in relation to the trial of a person on a charge of treason or murder.

34 & 35 Vict.
c. 65.

(2) In relation to any case in which, by virtue of the preceding subsection, the jury need not consist of more than seven persons, sections forty-one and forty-two of the Juries Act (Ireland), 1871 (which relate to the selection of a jury) shall have effect as if in those sections for the word "twelve", wherever that word occurs, there were substituted the word "seven".

Limitation
of pro-
ceedings
when jury
is neces-
sary.

7. Notwithstanding anything contained in any enactment or rule of court, no question arising in any civil proceedings in the High Court or in any county court shall be tried with a jury, and no writ of inquiry for the assessment of damages or other claim by a jury shall issue, unless the court or a judge is of opinion that the question ought to be tried with a jury or, as the case may be, the assessment ought to be made by a jury and makes an order to that effect.

Power to
hold inquest
in certain
cases
without a
jury.
9 & 10 Vict.
c. 37.

8.—(1) A coroner within whose jurisdiction a dead body is found or a case of sudden death or of death attended with suspicious circumstances occurs may, in lieu of summoning a jury in the manner required by section twenty-two of the Coroners (Ireland) Act, 1846, for the purpose of an inquest upon the dead body, hold an inquest thereon without a jury :

Provided that if it appears to the coroner, either before he proceeds to hold an inquest or in the course of an inquest begun without a jury, that there is reason to suspect—

(a) that the deceased came by his death by murder, manslaughter or infanticide; or

- (b) that the death occurred in prison or in such place or in such circumstances as to require an inquest under any Act other than the Coroners (Ireland) Act, 1846;

he shall proceed to summon a jury in the manner required by the said section twenty-two; and in any other case, if it appears to him, either before he proceeds to hold an inquest or in the course of an inquest begun without a jury, that there is any reason for summoning a jury, he may proceed to summon a jury in the manner aforesaid.

(2) The provisions of any enactment relating to the procedure in connection with an inquest shall, as respects an inquest or any part of an inquest which is held without a jury, have effect subject to such modifications as are rendered necessary by the absence of a jury, and where the whole of an inquest is held without a jury, the inquisition shall be under the hand of the coroner alone.

(3) Where an inquest or any part of an inquest is held without a jury, anything done at the inquest or at that part of the inquest, by or before the coroner alone, shall be as validly done as if it had been done by or before the coroner and a jury.

9.—(1) The period for which, under section fourteen of the Petty Sessions (Ireland) Act, 1851, an accused person may be remanded in custody, or, in the case of an accused person admitted to bail, may be remanded without his consent and that of the prosecutor, shall be a period not exceeding twenty-one clear days instead of a period not exceeding eight clear days. Remanding
of accused
persons.
14 & 15 Vict.
c. 93.

(2) Subsection (1) of section twenty of the Criminal Justice Administration Act, 1914 (which empowers a court of summary jurisdiction to extend the period on remand in a case where the person remanded is, by reason of illness or accident, unable to appear personally) shall have effect as if the reference in that subsection to illness or accident included a reference to circumstances arising out of the existence of a state of war. 4 & 5 Geo. 5.
c. 58.

10. In the event of the occurrence of a vacancy among the judges of the Supreme Court, it shall not be necessary to fill the vacancy unless the Secretary of State after consultation with the Lord Chief Justice Filling of
vacancies in
the Supreme
Court.

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advises His Majesty that the state of business requires that the vacancy should be filled.

Interpreta-
tion.

11.—(1) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment.

(2) References in this Act to any enactment shall be construed as references to that enactment as in force in Northern Ireland.

Short title,
extent and
duration.

12.—(1) This Act may be cited as the Administration of Justice (Emergency Provisions) (Northern Ireland) Act, 1939, and shall extend to Northern Ireland only.

(2) This Act shall continue in force until such date as His Majesty may by Order in Council declare to be the date on which the emergency that was the occasion of the passing of this Act came to an end, and shall then expire, except as respects things previously done or omitted to be done and subject to any temporary and transitional provisions contained in the Order.

Printed by EYRE AND SPOTTISWOODE LIMITED

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SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

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